
Case	Title / Nature of Case
02:00 PM	
21-CIV-02862	DILLAN LOVELL, ET AL VS. ALAN COCHRAN, ET AL.
LINE 1	
DILLAN LOVELL ALAN COCHRAN	GREGORY C. CATTERMOLE

PARTY INTERVENOR: INFINITY INSURANCE COMPANY'S MOTION TO COMPEL AND REQUEST FOR SANCTIONS

TENTATIVE RULING:

This is a personal injury case arising from a motor vehicle accident. Intervenor Infinity Insurance Company's seeks to compel responses to its Form Interrogatories (Set One), Special Interrogatories (Set One), and Demand for Production of Documents (Set One), served to Plaintiff Mike Lovell. Plaintiff has not opposed this motion.

Intervenor's unopposed motion to compel discovery responses is GRANTED, in full. Intervenor's request for sanctions is GRANTED, in part, and DENIED in part. Sanctions in an amount of \$560 are awarded as described further below.

On July 16, 2025, Intervenor served electronic copies of Form Interrogatories (Set One), Special Interrogatories (Set One), and Demand for Production of Documents (Set One) to counsel for Plaintiff Mike Lovell. (Nguyen Decl., ¶ 2, Ex. A.) Plaintiff's responses were due August 18, 2025. (Id., ¶ 3.) Plaintiff requested a two-week extension, which was granted, extending the deadline to September 2, 2025. (Id., ¶ 4, Ex. A.) Plaintiff did not meet this deadline. (Id., ¶ 5.)

On September 9, 2025, Intervenor emailed Plaintiff's counsel regarding the status of the outstanding discovery requests. (Id., ¶ 5, Ex. B.) Plaintiff did not respond. (Id., ¶ 5.) On September 22, 2025, Intervenor sent a meet and confer request asking for a response by October 8, 2025. (Id., ¶ 6, Ex. C.) Plaintiff did not respond. (Id., ¶ 7.)

On October 16, 2025, Intervenor's counsel scheduled an IDC with the court. (Id., ¶ 8.) On November 13, 2025, and IDC was held and Plaintiff's counsel indicated that he would provide verified responses by December 1, 2025, and that Intervenor may proceed with a motion thereafter if needed. (Id., ¶ 9, Ex. D.) Plaintiff failed to meet that deadline, prompting Intervenor to file this motion on December 9, 2025. (Id., Ex. 10.) Plaintiff's counsel further represented to the Court on July 30, 2026 that he would respond to the discovery and moot this motion, but there is no indication that he has.

Parties may conduct discovery as to any matter not privileged that is relevant to the subject matter involved in the pending action. (See Code Civ. Proc., §§ 2030.010, subd. (a), 2031, subd. (a).) If a timely response to discovery demand is not made, the propounding party may move the Court for an order compelling the opposing party to respond. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

Here, the Form Interrogatories, Special Interrogatories, and Demand for Production of Documents that were served by moving party on Plaintiff on July 16, 2025, and relate to the nature and extent of the Plaintiff's bodily injury claims, the facts of the subject accident, the Plaintiff's liability contentions, the existence of insurance coverage, the identity of material witnesses, and related evidentiary facts. Plaintiff has failed to respond despite multiple extensions, an IDC Conference and multiple representations to counsel and/or the Court that he would. Plaintiff's counsel is warned that further conduct like this will not be tolerated by the Court.

Intervenor's motion to compel discovery responses is GRANTED.

Plaintiff shall serve verified responses without objections to Intervenor's Form Interrogatories (Set One), Special Interrogatories (Set One), and Demand for Production of Documents (Set One) within 10 days of notice of entry of this order.

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories and/or requests for production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

Here, Intervenor's counsel requests sanctions of \$810.00, which includes attorney's fees for three hours of work at \$250.00 per hour, plus \$60 in filing fees. (Nguyen Decl., ¶ 12.) The estimate for attorney's fees includes time for "attending the hearing." (Id.) The court cannot grant sanctions for prospective attorney's fees (e.g. attending a hearing that has not yet been held, and may not be held at all.) Because counsel has not indicated how many of the hours he expected to incur in attending the hearing, the Court has subtracted one hour and will award two hours at \$250 for a total of \$560, which is a very reasonable amount for this motion.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-01165 ANGIE COLE VS. HAMPTON INN, ET AL.

LINE 2

ANGIE COLE
HAMPTON INN

JASON B. JAVAHERI

DEFENDANT SRI RAM ENTERPRISES, INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Defendant SRI Ram Enterprises, Inc.'s ("SRI") Motion for Summary Judgment ("MSJ"), filed June 11, 2026, is DENIED. (Code Civ. Proc. § 437c.) SRI's alternative Motion for Summary Adjudication ("MSA") is also DENIED.

The Court declines to rule on Defendant SRI's Aug. 20, 2026 Evidentiary Objections, which seek to exclude various statements/opinions in the declarations of Zachary Moore, Joellen Gill, and Robert Rauch (Aug. 10, 2026 Compendium of Evidence, Exhibits 18-20), on grounds that they are immaterial to the disposition of the motion. (Code Civ. Proc. § 437c(q).) As explained below, the Court finds that the evidence raises one or more triable issues that preclude the Court from granting summary judgment or adjudication, even without considering the Moore, Gill, and Rauch declarations.

Background

This negligence/premises liability case arises from Plaintiff Angie Cole's fall from a curb, and injury, at about 9:50 p.m. on May 15, 2020, at a Hampton Inn Hotel located at 300 Gateway Blvd. in South San Francisco. Defendant SRI owns and operates the hotel. Plaintiff alleges that she was walking on an exterior walkway adjoining the hotel parking lot, while holding several items in her hands, and looking straight forward, and did not see/notice a roughly 5-6 inch curb/step-down in front of her. Because she did not see the curb/step-down, she fell as she stepped down the curb, causing injury.

SRI's motion argues that the exterior walk-way, including the curb/step-down, was "open and obvious," because the area was well-lit, and because the curb/step-down was marked with yellow and black coloring that stood out from the remainder of the (white) sidewalk. SRI argues that Plaintiff did not notice the curb because she was carrying several items and was not paying proper attention to her surroundings. SRI argues that because the curb/step-down was open and obvious, Plaintiff's negligence and premises liability claims fail as a matter of law, because Plaintiff's injury was not foreseeable, and because the Plaintiff's own carelessness caused her fall, rather than any negligence on the part of SRI.

Viewing the evidence in a light favorable to Plaintiff, at it must, and drawing all reasonable inferences from the evidence, the Court finds that triable issues of fact exist as to whether the curb/drop-down presented an open and obvious condition/risk of injury, whether SRI provided sufficient warning of the curb/drop-down and whether Defendant could have or should have taken action to prevent the risk of injury, which prevents the Court from adjudicating Plaintiff's claims via summary judgment/adjudication.
